Montgomery County District Court

Cause No. 2024-CV-0041

Kristen Rich, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Plaintiff's Original Petition

Filed:	December 14, 2024
Plaintiff's counsel:	David Young, Sullivan & Palmer LLP

PARTIES

Plaintiff Kristen Rich is an individual residing in Texas who was injured in a motor vehicle collision occurring in Houston. Defendant is an automobile insurance carrier authorized to transact business in the State of Texas, which issued the policy of uninsured/underinsured motorist coverage under which Plaintiff now seeks benefits. Defendant may be served through its registered agent for service of process.

FACTS

On November 1, 2023, Plaintiff was lawfully stopped at a traffic singal in Houston when a third-party vehicle struck the rear of Plaintiff's vehicle at a substantial rate of speed. The impact was forceful, causing Plaintiff's body to move violently forward and back and jolting Plaintiff's left knee against the inetrior of the vehicle. Plaintiff reported the collision to Defendant and submitted the claim for benefits available under Plaintiff's policy. The at-fault driver's liability coverage proved insufficient to fully compensate Plaintiff's losses, and Defendant has failed to tender the benefits owed under the uninsured/underinsured motorist provisions.

NEGLIGENCE

The at-fault driver owed a duty to Plaintiff to operate the vehicle with reasonable care, to maintain a proper lookout, and to control speed so as to avoid collision with vehicles lawfully stopped ahead. The driver breached that duty by failing to stop in time and striking Plaintiff's vehicle. Defendant, having contracted to pay sums Plaintiff is legally entitled to recover from an underinsured motorist, owes a duty of good faith and fair dealing under Texas law, and breached that duty by failing to promptly and reasonably evaluate and pay the claim once liability and damages were reasonably clear.

DAMAGES

As a direct result of the collision, Plaintiff sustained a knee injury requiring medical examination, imaging, and ongoing treatment, and Plaintiff continues to experience pain, limited mobility, and reduced ability to work and perform daily activities. Plaintiff has incurred medical expenses, lost wages, and pain and suffering. Plaintiff seeks recovery of policy benefits, statutory interest, and attorney's fees as permitted by Texas law, in an amount of $131,000.00.